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must “deal fearlessly and impartially with the duties of his office”—not be made “unduly cautious in the discharge of [those] duties” by the prospect of civil liability for official acts. *Id.*, at 751–752, and n. 32 (internal quotation marks omitted). Indeed, we expressly rejected immunity based on distraction alone 15 years later in *Clinton v. Jones*. There, President Clinton argued that the risk of being “distracted by the need to participate in litigation” entitled a sitting President to absolute immunity from civil liability, not just for official acts, as in *Fitzgerald*, but for private conduct as well. 520 U. S., at 694, n. 19. We disagreed with that rationale, explaining that the “dominant concern” in *Fitzgerald* was not mere distraction but the distortion of the Executive’s “decisionmaking process” with respect to official acts that would stem from “worry as to the possibility of damages.” 520 U. S., at 694, n. 19. The Court recognized that Presidents constantly face myriad demands on their attention, “some private, some political, and some as a result of official duty.” *Id.*, at 705, n. 40. But, the Court concluded, “[w]hile such distractions may be vexing to those subjected to them, they do not ordinarily implicate constitutional . . . concerns.” *Ibid.*

The same is true of criminal subpoenas. Just as a “properly managed” civil suit is generally “unlikely to occupy any substantial amount of” a President’s time or attention, *id.*, at 702, two centuries of experience confirm that a properly tailored criminal subpoena will not normally hamper the performance of the President’s constitutional duties. If anything, we expect that in the mine run of cases, where a President is subpoenaed during a proceeding targeting someone else, as Jefferson was, the burden on a President will ordinarily be lighter than the burden of defending against a civil suit.

The President, however, believes the district attorney is investigating him and his businesses. In such a situation, he contends, the “toll that criminal process . . . exacts from

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the President is even heavier” than the distraction at issue in *Fitzgerald* and *Clinton*, because “criminal litigation” poses unique burdens on the President’s time and will generate a “considerable if not overwhelming degree of mental preoccupation.” Brief for Petitioner 16–18, 30 (internal quotation marks omitted).

But the President is not seeking immunity from the diversion occasioned by the prospect of future criminal *liability*. Instead he concedes—consistent with the position of the Department of Justice—that state grand juries are free to investigate a sitting President with an eye toward charging him after the completion of his term. See Reply Brief 19 (citing Memorandum from Randolph D. Moss, Assistant Atty. Gen., Office of Legal Counsel, to the Atty. Gen.: A Sitting President’s Amenability to Indictment and Criminal Prosecution, 24 Op. OLC 222, 257, n. 36 (Oct. 16, 2000)). The President’s objection therefore must be limited to the *additional* distraction caused by the subpoena itself. But that argument runs up against the 200 years of precedent establishing that Presidents, and their official communications, are subject to judicial process, see *Burr*, 25 F. Cas., at 34, even when the President is under investigation, see *Nixon*, 418 U. S., at 706.

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The President next claims that the stigma of being subpoenaed will undermine his leadership at home and abroad. Notably, the Solicitor General does not endorse this argument, perhaps because we have twice denied absolute immunity claims by Presidents in cases involving allegations of serious misconduct. See *Clinton*, 520 U. S., at 685; *Nixon*, 418 U. S., at 687. But even if a tarnished reputation were a cognizable impairment, there is nothing inherently stigmatizing about a President performing “the citizen’s normal duty of . . . furnishing information relevant” to a criminal investigation. *Branzburg v. Hayes*, 408 U. S. 665, 691 (1972). Nor can we accept that the risk of association with persons

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or activities under criminal investigation can absolve a President of such an important public duty. Prior Presidents have weathered these associations in federal cases, *supra*, at 795–799, and there is no reason to think any attendant notoriety is necessarily greater in state court proceedings.

To be sure, the consequences for a President’s public standing will likely increase if he is the one under investigation. But, again, the President concedes that such investigations are permitted under Article II and the Supremacy Clause, and receipt of a subpoena would not seem to categorically magnify the harm to the President’s reputation.

Additionally, while the current suit has cast the Mazars subpoena into the spotlight, longstanding rules of grand jury secrecy aim to prevent the very stigma the President anticipates. See S. Beale et al., *Grand Jury Law and Practice* §5:1, p. 5–3 (2d ed. 2018) (“[T]he federal system and most states have adopted statutes or court rules” that “impose sharp restrictions on the extent to which matters occurring before a grand jury may be divulged” to outside persons.). Of course, disclosure restrictions are not perfect. See *Nixon*, 418 U. S., at 687, n. 4 (observing that news media reporting made the protective order shielding the fact that the President had been named as an unindicted co-conspirator “no longer meaningful”). But those who make unauthorized disclosures regarding a grand jury subpoena do so at their peril. See, e. g., N. Y. Penal Law Ann. §215.70 (West 2010) (designating unlawful grand jury disclosure as a felony).

3

Finally, the President and the Solicitor General warn that subjecting Presidents to state criminal subpoenas will make them “easily identifiable target[s]” for harassment. *Fitzgerald*, 457 U. S., at 753. But we rejected a nearly identical argument in *Clinton*, where then-President Clinton argued that permitting civil liability for unofficial acts would “generate a large volume of politically motivated harassing and

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frivolous litigation.” *Clinton*, 520 U. S., at 708. The President and the Solicitor General nevertheless argue that state criminal subpoenas pose a heightened risk and could undermine the President’s ability to “deal fearlessly and impartially” with the States. *Fitzgerald*, 457 U. S., at 752 (internal quotation marks omitted). They caution that, while federal prosecutors are accountable to and removable by the President, the 2,300 district attorneys in this country are responsive to local constituencies, local interests, and local prejudices, and might “use criminal process to register their dissatisfaction with” the President. Brief for Petitioner 16. What is more, we are told, the state courts supervising local grand juries may not exhibit the same respect that federal courts show to the President as a coordinate branch of Government.

We recognize, as does the district attorney, that harassing subpoenas could, under certain circumstances, threaten the independence or effectiveness of the Executive. See Tr. of Oral Arg. 73. Even so, in *Clinton* we found that the risk of harassment was not “serious” because federal courts have the tools to deter and, where necessary, dismiss vexatious civil suits. 520 U. S., at 708. And, while we cannot ignore the possibility that state prosecutors may have political motivations, see *post*, at 839 (ALITO, J., dissenting), here again the law already seeks to protect against the predicted abuse.

First, grand juries are prohibited from engaging in “arbitrary fishing expeditions” and initiating investigations “out of malice or an intent to harass.” *United States v. R. Enterprises, Inc.*, 498 U. S. 292, 299 (1991). See also, *e. g.*, *Virag v. Hynes*, 54 N. Y. 2d 437, 442–443, 430 N. E. 2d 1249, 1252 (1981) (recognizing that grand jury subpoenas can be “challenged by an affirmative showing of impropriety,” including “bad faith” (internal quotation marks omitted)). These protections, as the district attorney himself puts it, “apply with special force to a President, in light of the office’s unique position as the head of the Executive Branch.” Brief for

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Respondent Vance 43. And, in the event of such harassment, a President would be entitled to the protection of federal courts. The policy against federal interference in state criminal proceedings, while strong, allows “intervention in those cases where the District Court properly finds that the state proceeding is motivated by a desire to harass or is conducted in bad faith.” *Huffman v. Pursue, Ltd.*, 420 U. S. 592, 611 (1975).

Second, contrary to JUSTICE ALITO’s characterization, our holding does not allow States to “run roughshod over the functioning of [the Executive B]ranch.” *Post*, at 846. The Supremacy Clause prohibits state judges and prosecutors from interfering with a President’s official duties. See, e. g., *Tennessee v. Davis*, 100 U. S. 257, 263 (1880) (“No State government can . . . obstruct [the] authorized officers” of the Federal Government.). Any effort to manipulate a President’s policy decisions or to “retaliat[e]” against a President for official acts through issuance of a subpoena, Brief for Respondent Vance 15, 43, would thus be an unconstitutional attempt to “influence” a superior sovereign “exempt” from such obstacles, see *McCulloch*, 4 Wheat., at 427. We generally “assume[] that state courts and prosecutors will observe constitutional limitations.” *Dombrowski v. Pfister*, 380 U. S. 479, 484 (1965). Failing that, federal law allows a President to challenge any allegedly unconstitutional influence in a federal forum, as the President has done here. See 42 U. S. C. § 1983; *Ex parte Young*, 209 U. S. 123, 155–156 (1908) (holding that federal courts may enjoin state officials to conform their conduct to federal law).

Given these safeguards and the Court’s precedents, we cannot conclude that absolute immunity is necessary or appropriate under Article II or the Supremacy Clause. Our dissenting colleagues agree. JUSTICE THOMAS reaches the same conclusion based on the original understanding of the Constitution reflected in Marshall’s decision in *Burr*. *Post*, at 816, 818–819. And JUSTICE ALITO, also persuaded by

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Burr, “agree[s]” that “not all” state criminal subpoenas for a President’s records “should be barred.” *Post*, at 840. On that point the Court is unanimous.

B

We next consider whether a state grand jury subpoena seeking a President’s private papers must satisfy a heightened need standard. The Solicitor General would require a threshold showing that the evidence sought is “critical” for “specific charging decisions” and that the subpoena is a “last resort,” meaning the evidence is “not available from any other source” and is needed “now, rather than at the end of the President’s term.” Brief for United States as *Amicus Curiae* 29, 32 (internal quotation marks and alteration omitted). JUSTICE ALITO, largely embracing those criteria, agrees that a state criminal subpoena to a President “should not be allowed unless a heightened standard is met.” *Post*, at 840–842 (asking whether the information is “critical” and “necessary . . . now”).

We disagree, for three reasons. First, such a heightened standard would extend protection designed for official documents to the President’s private papers. As the Solicitor General and JUSTICE ALITO acknowledge, their proposed test is derived from executive privilege cases that trace back to *Burr*. Brief for United States as *Amicus Curiae* 26–28; *post*, at 840–841. There, Marshall explained that if Jefferson invoked presidential privilege over executive communications, the court would not “proceed against the president as against an ordinary individual” but would instead require an affidavit from the defense that “would clearly show the paper to be essential to the justice of the case.” *Burr*, 25 F. Cas., at 192. The Solicitor General and JUSTICE ALITO would have us apply a similar standard to a President’s personal papers. But this argument does not account for the relevant passage from *Burr*: “If there be a paper in the possession of the executive, which is *not of an official nature*, he must

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stand, as respects that paper, in nearly the same situation with any other individual.” *Id.*, at 191 (emphasis added). And it is only “nearly”—and not “entirely”—because the President retains the right to assert privilege over documents that, while ostensibly private, “partake of the character of an official paper.” *Id.*, at 191–192.

Second, neither the Solicitor General nor JUSTICE ALITO has established that heightened protection against state subpoenas is necessary for the Executive to fulfill his Article II functions. Beyond the risk of harassment, which we addressed above, the only justification they offer for the heightened standard is protecting Presidents from “unwarranted burdens.” Brief for United States as *Amicus Curiae* 28; see *post*, at 840 (asking whether “there is an urgent and critical need for the subpoenaed information”). In effect, they argue that even if federal subpoenas to a President are warranted whenever evidence is material, state subpoenas are warranted “only when [the] evidence is essential.” Brief for United States as *Amicus Curiae* 28; see *post*, at 840. But that double standard has no basis in law. For if the state subpoena is not issued to manipulate, *supra*, at 805–806, the documents themselves are not protected, *supra*, at 807–808, and the Executive is not impaired, *supra*, at 801–804, then nothing in Article II or the Supremacy Clause supports holding state subpoenas to a higher standard than their federal counterparts.

Finally, in the absence of a need to protect the Executive, the public interest in fair and effective law enforcement cuts in favor of comprehensive access to evidence. Requiring a state grand jury to meet a heightened standard of need would hobble the grand jury’s ability to acquire “all information that might possibly bear on its investigation.” *R. Enterprises, Inc.*, 498 U.S., at 297. And, even assuming the evidence withheld under that standard were preserved until the conclusion of a President’s term, in the interim the State would be deprived of investigative leads that the evidence

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might yield, allowing memories to fade and documents to disappear. This could frustrate the identification, investigation, and indictment of third parties (for whom applicable statutes of limitations might lapse). More troubling, it could prejudice the innocent by depriving the grand jury of *exculpatory* evidence.

Rejecting a heightened need standard does not leave Presidents with “no real protection.” *Post*, at 843 (opinion of ALITO, J.). To start, a President may avail himself of the same protections available to every other citizen. These include the right to challenge the subpoena on any grounds permitted by state law, which usually include bad faith and undue burden or breadth. See, e.g., *Virag*, 54 N. Y. 2d, at 442–445, 430 N. E. 2d, at 1252–1253; *In re Grand Jury Subpoenas*, 72 N. Y. 2d 307, 315–316, 528 N. E. 2d 1195, 1200 (1988) (recognizing that grand jury subpoenas can be challenged as “overly broad” or “unreasonably burdensome” (internal quotation marks omitted)). And, as in federal court, “[t]he high respect that is owed to the office of the Chief Executive . . . should inform the conduct of the entire proceeding, including the timing and scope of discovery.” *Clinton*, 520 U. S., at 707. See *id.*, at 724 (BREYER, J., concurring in judgment) (stressing the need for courts presiding over suits against the President to “schedule proceedings so as to avoid significant interference with the President’s ongoing discharge of his official responsibilities”); *Nixon*, 418 U. S., at 702 (“[W]here a subpoena is directed to a President . . . appellate review . . . should be particularly meticulous.”).

Furthermore, although the Constitution does not entitle the Executive to absolute immunity or a heightened standard, he is not “relegate[d]” only to the challenges available to private citizens. *Post*, at 841 (opinion of ALITO, J.). A President can raise subpoena-specific constitutional challenges, in either a state or federal forum. As previously noted, he can challenge the subpoena as an attempt to influence the performance of his official duties, in violation of the

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Supremacy Clause. See *supra*, at 806. This avenue protects against local political machinations “interposed as an obstacle to the effective operation of a federal constitutional power.” *United States v. Belmont*, 301 U. S. 324, 332 (1937).

In addition, the Executive can—as the district attorney concedes—argue that compliance with a particular subpoena would impede his constitutional duties. Brief for Respondent Vance 42. Incidental to the functions confided in Article II is “the power to perform them, without obstruction or impediment.” 3 J. Story, *Commentaries on the Constitution of the United States* § 1563, pp. 418–419 (1833). As a result, “once the President sets forth and explains a conflict between judicial proceeding and public duties,” or shows that an order or subpoena would “significantly interfere with his efforts to carry out” those duties, “the matter changes.” *Clinton*, 520 U. S., at 710, 714 (opinion of BREYER, J.). At that point, a court should use its inherent authority to quash or modify the subpoena, if necessary to ensure that such “interference with the President’s duties would not occur.” *Id.*, at 708 (opinion of the Court).

* * *

Two hundred years ago, a great jurist of our Court established that no citizen, not even the President, is categorically above the common duty to produce evidence when called upon in a criminal proceeding. We reaffirm that principle today and hold that the President is neither absolutely immune from state criminal subpoenas seeking his private papers nor entitled to a heightened standard of need. The “guard[] furnished to this high officer” lies where it always has—in “the conduct of a court” applying established legal and constitutional principles to individual subpoenas in a manner that preserves both the independence of the Executive and the integrity of the criminal justice system. *Burr*, 25 F. Cas., at 34.

The arguments presented here and in the Court of Appeals were limited to absolute immunity and heightened

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need. The Court of Appeals, however, has directed that the case be returned to the District Court, where the President may raise further arguments as appropriate. 941 F. 3d, at 646, n. 19.⁶

We affirm the judgment of the Court of Appeals and remand the case for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE KAVANAUGH, with whom JUSTICE GORSUCH joins, concurring in the judgment.

The Court today unanimously concludes that a President does not possess absolute immunity from a state criminal subpoena, but also unanimously agrees that this case should be remanded to the District Court, where the President may raise constitutional and legal objections to the subpoena as appropriate. See *ante*, at 810–811, and n. 6; *post*, at 825 (THOMAS, J., dissenting); *post*, at 840–843 (ALITO, J., dissenting). I agree with those two conclusions.

* * *

The dispute over this grand jury subpoena reflects a conflict between a State’s interest in criminal investigation and a President’s Article II interest in performing his or her duties without undue interference. Although this case involves personal information of the President and is therefore not an executive privilege case, the majority opinion correctly concludes based on precedent that Article II and the Supremacy Clause of the Constitution supply some protec-

⁶The daylight between our opinion and JUSTICE THOMAS’s “dissent” is not as great as that label might suggest. *Post*, at 825. We agree that Presidents are neither absolutely immune from state criminal subpoenas nor insulated by a heightened need standard. *Post*, at 819, 824–825, n. 3. We agree that Presidents may challenge specific subpoenas as impeding their Article II functions. *Post*, at 820. And, although we affirm while JUSTICE THOMAS would vacate, we agree that this case will be remanded to the District Court. *Post*, at 825.

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tion for the Presidency against state criminal subpoenas of this sort.

In our system of government, as this Court has often stated, no one is above the law. That principle applies, of course, to a President. At the same time, in light of Article II of the Constitution, this Court has repeatedly declared—and the Court indicates again today—that a court may not proceed against a President as it would against an ordinary litigant. See *Cheney v. United States Dist. Court for D. C.*, 542 U. S. 367, 381–382 (2004) (“In no case would a court be required to proceed against the president as against an ordinary individual” (internal quotation marks and alterations omitted)); *Clinton v. Jones*, 520 U. S. 681, 704, n. 39 (1997) (a court may not “proceed against the president as against an ordinary individual” (internal quotation marks omitted)); *United States v. Nixon*, 418 U. S. 683, 715 (1974) (“In no case of this kind would a court be required to proceed against the president as against an ordinary individual” (internal quotation marks and alterations omitted)); *United States v. Burr*, 25 F. Cas. 187, 192 (No. 14,694) (CC Va. 1807) (Marshall, C. J.) (“In no case of this kind would a court be required to proceed against the president as against an ordinary individual”).

The question here, then, is how to balance the State’s interests and the Article II interests. The longstanding precedent that has applied to federal criminal subpoenas for official, privileged Executive Branch information is *United States v. Nixon*, 418 U. S. 683 (1974). That landmark case requires that a prosecutor establish a “demonstrated, specific need” for the President’s information. *Id.*, at 713; see also *In re Sealed Case*, 121 F. 3d 729, 753–757 (CA DC 1997); cf. *Senate Select Committee on Presidential Campaign Activities v. Nixon*, 498 F. 2d 725, 730–731 (CA DC 1974) (en banc) (similar standard for congressional subpoenas to the Executive Branch).

The *Nixon* “demonstrated, specific need” standard is a tried-and-true test that accommodates both the interests of

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the criminal process and the Article II interests of the Presidency. The *Nixon* standard ensures that a prosecutor's interest in subpoenaed information is sufficiently important to justify an intrusion on the Article II interests of the Presidency. The *Nixon* standard also reduces the risk of subjecting a President to unwarranted burdens, because it provides that a prosecutor may obtain a President's information only in certain defined circumstances.

Although the Court adopted the *Nixon* standard in a different Article II context—there, involving the confidentiality of official, privileged information—the majority opinion today recognizes that there are also important Article II (and Supremacy Clause) interests at stake here. A state criminal subpoena to a President raises Article II and Supremacy Clause issues because of the potential for a state prosecutor to use the criminal process and issue subpoenas in a way that interferes with the President's duties, through harassment or diversion. Cf. *Nixon v. Fitzgerald*, 457 U. S. 731, 751–753 (1982).

Because this case again entails a clash between the interests of the criminal process and the Article II interests of the Presidency, I would apply the longstanding *Nixon* “demonstrated, specific need” standard to this case. The majority opinion does not apply the *Nixon* standard in this distinct Article II context, as I would have done. That said, the majority opinion appropriately takes account of some important concerns that also animate *Nixon* and the Constitution's balance of powers. The majority opinion explains that a state prosecutor may not issue a subpoena for a President's personal information out of bad faith, malice, or an intent to harass a President, *ante*, at 805–806; as a result of prosecutorial impropriety, *ibid.*; to seek information that is not relevant to an investigation, *ante*, at 805–806, 809; that is overly broad or unduly burdensome, *ante*, at 809; to manipulate, influence, or retaliate against a President's official acts or policy decisions, *ante*, at 806, 809–810; or in a way that would impede, conflict

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with, or interfere with a President’s official duties, *ante*, at 809–810. All nine Members of the Court agree, moreover, that a President may raise objections to a state criminal subpoena not just in state court but also in federal court.¹ And the majority opinion indicates that, in light of the “high respect that is owed to the office of the Chief Executive,” courts “should be particularly meticulous” in assessing a subpoena for a President’s personal records. *Ante*, at 809 (quoting *Clinton*, 520 U. S., at 707, and *Nixon*, 418 U. S., at 702).

In the end, much may depend on how the majority opinion’s various standards are applied in future years and decades.² It will take future cases to determine precisely how much difference exists between (i) the various standards articulated by the majority opinion, (ii) the overarching *Nixon* “demonstrated, specific need” standard that I would adopt, and (iii) JUSTICE THOMAS’s and JUSTICE ALITO’s other proposed standards. In any event, in my view, lower courts in cases of this sort involving a President will almost invariably have to begin by delving into why the State wants the information; why and how much the State needs the information, including whether the State could obtain the information elsewhere; and whether compliance with the subpoena would unduly burden or interfere with a President’s official duties.

* * *

I agree that the case should be remanded to the District Court for further proceedings, where the President may raise constitutional and legal objections to the state grand jury subpoena as appropriate.

¹ As I see it, the standards identified by the majority opinion should be considered, in this context, Article II requirements, not just statutory or state-law requirements. Cf. *Cheney v. United States Dist. Court for D. C.*, 542 U. S. 367, 385–392 (2004); *Clinton v. Jones*, 520 U. S. 681, 707 (1997); *Nixon v. Fitzgerald*, 457 U. S. 731, 749–757 (1982); *United States v. Nixon*, 418 U. S. 683, 714–716 (1974).

² The same point—namely, that much may depend on future application—is also true of the four considerations articulated by the Court today in *Trump v. Mazars USA, LLP*, 591 U. S. 848, 869–871 (2020).

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Respondent Cyrus Vance, Jr., the district attorney for the County of New York, served a grand jury subpoena on the President's personal accounting firm. The subpoena, which is nearly identical to a subpoena issued by a congressional Committee, requests nearly 10 years of the President's personal financial records. *Ante*, at 791–792, and n. 2. In response to this troublingly broad request, the President, in his personal capacity, sought a declaration in federal court “that the subpoena is invalid and unenforceable” and an injunction preventing respondent “from taking any action to enforce the subpoena.” *Ante*, at 792. The District Court denied the President's motion for a preliminary injunction, and the Second Circuit affirmed in relevant part. *Ante*, at 792–793.

The President argues that he is absolutely immune from the issuance of any subpoena, but that if the Court disagrees, we should remand so that the District Court can develop a record about this particular subpoena. I agree with the majority that the President is not entitled to absolute immunity from *issuance* of the subpoena. But he may be entitled to relief against its *enforcement*. I therefore agree with the President that the proper course is to vacate and remand. If the President can show that “his duties as chief magistrate demand his whole time for national objects,” *United States v. Burr*, 25 F. Cas. 30, 34 (No. 14,692d) (CC Va. 1807) (Marshall, C. J.), he is entitled to relief from enforcement of the subpoena.

I

The President first argues that he has absolute immunity from the issuance of grand jury subpoenas during his term in office. This Court has recognized absolute immunity for the President from “damages liability predicated on his official acts.” *Nixon v. Fitzgerald*, 457 U. S. 731, 749 (1982). But we have rejected absolute immunity from damages actions for a President's nonofficial conduct, *Clinton v. Jones*, 520 U. S. 681, 684 (1997), and we have never addressed the question of immunity from a grand jury subpoena.

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I agree with the majority that the President does not have absolute immunity from the issuance of a grand jury subpoena. Unlike the majority, however, I do not reach this conclusion based on a primarily functionalist analysis. Instead, I reach it based on the text of the Constitution, which, as understood by the ratifying public and incorporated into an early circuit opinion by Chief Justice Marshall, does not support the President's claim of absolute immunity.¹

A

1

The text of the Constitution explicitly addresses the privileges of some federal officials, but it does not afford the President absolute immunity. Members of Congress are “privileged from Arrest during their Attendance at the Session of their respective Houses, and in going to and returning from the same,” except for “Treason, Felony and Breach of the Peace.” Art. I, § 6, cl. 1. The Constitution further specifies that, “for any Speech or Debate in either House, they shall not be questioned in any other Place.” *Ibid.* By contrast, the text of the Constitution contains no explicit grant of absolute immunity from legal process for the President. As a Federalist essayist noted during ratification, the President’s “person is not so much protected as that of a member of the House of Representatives” because he is subject to the issuance of judicial process “like any other man in the ordinary course of law.” An American Citizen I (Sept. 26, 1787), in 2 Documentary History of the Ratification of the Constitution 141 (M. Jensen ed. 1976) (emphasis deleted).

Prominent defenders of the Constitution confirmed the lack of absolute Presidential immunity. James Wilson, a signer of the Constitution and future Justice of this Court, explained to his fellow Pennsylvanians that “far from being

¹I do not address the continuing validity of *Nixon v. Fitzgerald*, 457 U. S. 731 (1982), which no party asks us to revisit.

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above the laws, [the President] is amenable to them in his private character as a citizen, and in his public character by *impeachment*.” 2 Debates on the Constitution 480 (J. Elliot ed. 1891) (emphasis in original). James Iredell, another future Justice, observed in the North Carolina ratifying convention that “[i]f [the President] commits any crime, he is punishable by the laws of his country.” 4 *id.*, at 109. A fellow North Carolinian similarly argued that, “[w]ere it possible to suppose that the President should give wrong instructions to his deputies, . . . citizens . . . would have redress in the ordinary courts of common law.” *Id.*, at 47; see also Americanus No. 2, in 19 Documentary History of the Ratification of the Constitution 288–289 (J. Kaminski & G. Saladino eds. 2003); Americanus No. 4, in *id.*, at 359.

2

The sole authority that the President cites from the drafting or ratification process is The Federalist No. 69, but it provides him no real support. Alexander Hamilton stated that “[t]he President of the United States would be liable to be impeached, tried, and, upon conviction of treason, bribery, or other high crimes or misdemeanors, removed from office; and would afterwards be liable to prosecution and punishment in the ordinary course of law.” The Federalist No. 69, p. 416 (C. Rossiter ed. 1961). Hamilton did not say that the President was temporarily immune from judicial process. Moreover, he made this comment to reassure readers that the President was “amenable to personal punishment and disgrace.” *Id.*, at 422. For the President, this is at best ambiguous evidence that cannot overcome the clear evidence discussed above.

The President further relies on a private letter written by President Jefferson. In the letter, Jefferson worried that the Executive would lose his independence “if he were subject to the *commands* of the [judiciary], & to imprisonment for disobedience; if the several courts could bandy him from

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pillar to post, keep him constantly trudging from north to south & east to west, and withdraw him entirely from his constitutional duties.” 10 Works of Thomas Jefferson 404, n. (P. Ford ed. 1905) (emphasis in original). But President Jefferson never squarely argued for absolute immunity. Yoo, *The First Claim: The Burr Trial, United States v. Nixon*, and Presidential Power, 83 Minn. L. Rev. 1435, 1450 (1999). And, the concern Jefferson had about demands on the President’s time is addressed by the standard that Chief Justice Marshall articulated in *Burr*. See *infra*, at 820.

The President also quotes the views of Vice President John Adams and then-Senator Oliver Ellsworth in 1789. The record of the conversation we have from a fellow Senator’s diary is brief. Adams or Ellsworth (or perhaps both) stated that “you could only impeach [the President], and no other process whatever lay against him.” *Journal of William Maclay* 167 (E. Maclay ed. 1890). The only reason given was that it would “stop the whole machine of Government.” *Ibid.* Senator Philip Schuyler joined the conversation and gave his own reason: “I think the President [is] a kind of sacred person.” *Ibid.* Schuyler’s theory clearly has no basis in the Constitution, and the view held by Adams and Ellsworth seems to be grounds for relief from enforcement rather than a basis for absolute immunity from issuance of a subpoena.

B

This original understanding is reflected in an early circuit decision by Chief Justice Marshall, on which the majority partially relies. In 1805, disgraced former Vice President Aaron Burr began a murky series of negotiations to raise a volunteer army in the Western Territories. *Ante*, at 793–794. One of his contacts, General James Wilkinson, was not only commander of the Army and Governor of Louisiana, but also a Spanish spy. *Ibid.*, n. 4; Yoo, *supra*, at 1440. After Burr set out with his army—perhaps to attack Spanish forces or perhaps to separate Western Territories from the

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United States—Wilkinson wrote to President Jefferson and accused Burr of the latter. *Ante*, at 794; Yoo, *supra*, at 1440. Burr was arrested for treason and brought before a grand jury in Richmond, where Chief Justice Marshall presided.

During the grand jury proceedings, Burr moved for a subpoena *duces tecum* ordering President Jefferson to produce the correspondence concerning Burr. *Burr*, 25 F. Cas., at 30. Chief Justice Marshall pre-emptively rejected any notion of absolute immunity, despite the fact that the Government did not so much as suggest it in court. He distinguished the President from the British monarch, who did have immunity, calling it an “essentia[l] . . . difference” in our system that the President “is elected from the mass of the people, and, on the expiration of the time for which he is elected, returns to the mass of the people again.” *Id.*, at 34. Thus, the President was more like a state governor or a member of the British cabinet than a king. Chief Justice Marshall found no authority suggesting that these officials were immune from judicial process. *Ibid.*; see also *ante*, at 795–796.

Based on the evidence of original meaning and Chief Justice Marshall’s early interpretation in *Burr*, the better reading of the text of the Constitution is that the President has no absolute immunity from the issuance of a grand jury subpoena.

II

In addition to contesting the issuance of the subpoena, the President also seeks injunctive and declaratory relief against its enforcement. The majority recognizes that the President can seek relief from enforcement, but it does not vacate and remand for the lower courts to address this question. I would do so and instruct them to apply the standard articulated by Chief Justice Marshall in *Burr*: If the President is unable to comply because of his official duties, then he is entitled to injunctive and declaratory relief.

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A

In *Burr*, after explaining that the President was not absolutely immune from issuance of a subpoena, Chief Justice Marshall proceeded to explain that the President might be excused from the enforcement of one. As he put it, “[t]he guard, furnished to this high officer, to protect him from being harassed by vexatious and unnecessary subpoenas, is to be looked for in the conduct of a court *after those subpoenas have issued*; not in any circumstance which is to precede their being issued.” 25 F. Cas., at 34 (emphasis added). Chief Justice Marshall set out the pertinent standard: To avoid enforcement of the subpoena, the President must “sho[w]” that “his duties as chief magistrate demand his whole time for national objects.” *Ibid.*²

Although *Burr* involved a federal subpoena, the same principle applies to a state subpoena. The ability of the President to discharge his duties until his term expires or he is removed from office by the Senate is “integral to the structure of the Constitution.” *Franchise Tax Bd. of Cal. v. Hyatt*, 587 U.S. 230, 246 (2019). The Constitution is the “supreme Law of the Land,” Art. VI, cl. 2, so a state court can no more enforce a subpoena when national concerns demand the President’s entire time than a federal court can. Accordingly, a federal court may provide injunctive and declaratory relief to stay enforcement of a state subpoena when the President meets the *Burr* standard.

B

The *Burr* standard places the burden on the President but also requires courts to take pains to respect the demands on

²This standard appears to be something that Chief Justice Marshall and President Jefferson, who were often at odds, could agree on. President Jefferson’s concern was that the Executive would lose his independence if courts could “withdraw him entirely from his constitutional duties.” 10 Works of Thomas Jefferson 404, n. (P. Ford ed. 1905). Relief from enforcement when those duties preclude the President’s compliance addresses these concerns.

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the President's time. The Constitution vests the President with extensive powers and responsibilities, and courts are poorly situated to conduct a searching review of the President's assertion that he is unable to comply.

1

The President has vast responsibilities both abroad and at home. The Founders gave the President “primary responsibility—along with the necessary power—to protect the national security and to conduct the Nation’s foreign relations.” *Hamdi v. Rumsfeld*, 542 U. S. 507, 580 (2004) (THOMAS, J., dissenting). The Constitution “expressly identifies certain foreign affairs powers and vests them” in his office. *Zivotofsky v. Kerry*, 576 U. S. 1, 32 (2015) (THOMAS, J., concurring in judgment in part and dissenting in part). He is “Commander in Chief of the Army and Navy of the United States, and of the Militia of the several States, when called into the actual Service of the United States.” Art. II, §2, cl. 1. He has “Power, by and with the Advice and Consent of the Senate, to make Treaties.” Cl. 2. He has the power to “nominate, and by and with the Advice and Consent of the Senate [to] appoint Ambassadors [and] other public Ministers and Consuls.” *Ibid.* He has the power to fill vacancies that arise during a Senate recess until “the End of [the Senate’s] next Session.” Cl. 3. And he is responsible for “receiv[ing] Ambassadors and other public Ministers” from foreign countries. §3.

The President also has residual powers granted by Article II’s Vesting Clause. “By omitting the words ‘herein granted’ in [the Vesting Clause of] Article II, the Constitution indicates that the ‘executive Power’ vested in the President is not confined to those powers expressly identified in the document.” *Zivotofsky*, 576 U. S., at 34–35 (opinion of THOMAS, J.). Rather, the Constitution “vests the residual foreign affairs powers of the Federal Government—*i. e.*, those not specifically enumerated in the Constitution—in the